



Medford City Council
Medford, Massachusetts

MEETING DATE

September 29, 2026

SPONSORED BY

George Scarpelli, City Councilor

AGENDA ITEM

26-172 - Order to Place Adoption of M.G.L. Chapter 40, Section 6C Before Voters in November 2027 (Regarding Liability on Private Ways)

FULL TEXT AND DESCRIPTION

Whereas, in *Gallagher v. City of Medford*, a resident brought suit against the City after suffering injuries caused by a defect on a private way; and,

Whereas, the City sought summary judgment, arguing it had no maintenance obligation over private ways; and,

Whereas, the Appellate Division of the District Court Department found that the City's informal maintenance on that private way — performed without the City having adopted M.G.L. c. 40 §6C — estopped the City from denying that way's public status under G.L. c. 84, §25; and,

Whereas, the Court stated directly: "It is undeniable that a city or town which has accepted G.L. c.40 §6C may remove snow and ice from a private way without risk that such services will constitute repairs cognizable under G.L. c.84, §25;" and,

Whereas, following the *Gallagher* ruling, the City has not acted to adopt G.L. c. 40 §6C; and

Whereas, the City of Medford continues to perform informal maintenance, sweeping, and snow and ice removal on all private ways; and

Whereas, Section 6C's liability carve-out only protects the City if the City has actually accepted it; and

Whereas, 39% of Medford roadways are designated private ways; and

Whereas, since 2020, the City has appropriated \$0.00 for private way repairs; and

Whereas, no maintenance or upkeep services are provided but for the informal services outlined in *Gallagher*; and

Whereas, without acceptance, the City is unnecessarily exposing itself to full public-way tort liability;
and

Whereas, acceptance of the measure requires a ballot question at the next regular City election; now,
therefore:

By the Medford City Council that we hereby vote, pursuant to Massachusetts General Laws Chapter 40, Section 6D, to submit for acceptance to the registered voters of the City, at the next regular City election, the question of whether the City shall accept the provisions of Massachusetts General Laws Chapter 40, Section 6C.

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

None